Revision Date:
December 1, 2024

Background:
The caretaker relative must be related to the applicant or eligible child. The caretaker relative may be any relation by blood, marriage or adoption who is within the fifth degree of kinship to the applicant or eligible child, and exercises responsibility for the day to day care and control of the child.

Purpose:
The purpose of this section is to define the caretaker relative requirements. This material revision is due to sunset date review. No policy or procedure changes have been made.

Policy:
Caretaker Relative Defined
The following rules apply to the designation of a caretaker relative in an Assistance Unit (AU):

- A caretaker relative must be related to the applicant or eligible child.
- A caretaker relative may be a parent or a non-parent caretaker.
- A non-parent caretaker relative must be 18 years of age or older.
- To be determined a caretaker relative, an eligible child must be living in the home of the caretaker relative.
- A child is considered to be living in the home of a caretaker relative even when:
  - The child is under the jurisdiction of the court and is living in the home of a relative (that is, receiving probation services or protective supervision).
  - The child's legal custody is held by an agency that does not have physical possession of the child.
- The caretaker relative can be any of the relatives listed below (See Relationship of a Caretaker Relative) when a child has been relinquished or adopted, or parental rights have been terminated.

A Legal Guardian as Caretaker Relative
A legal guardian is a person named by the court to be the guardian of a child. In order to receive CalWORKs benefits for the child and/or themselves, the legal guardian must meet the definition of a caretaker relative (above).

Relationship of a Caretaker Relative
The caretaker relative may be related by blood, marriage or adoption who is within the fifth degree of kinship to the applicant or eligible child as specified below:

Relationship Type	Relation
Biological Relatives	• Parent (mother or father). • Grandparent (including great and great-great). • Brother or sister (including half-sibling). • Uncle or aunt (including great and great-great). • Nephew or niece (including great and great-great). • First or second cousin.
Step Relatives	• Stepfather, stepmother or California domestic partner of a parent. • Stepbrother or stepsister.

Spouses of Relatives	A spouse or California domestic partner of a parent of any person named above even after marriage or domestic relationship has been terminated by death or dissolution or termination of the California domestic partnership.
Adoptive Relatives	A person who legally adopts the child or that person's relatives as above in this table.

Determining the Caretaker Relative

- Generally, if the child is living with a parent, the parent is the caretaker relative.
- If the child is not living with the parent, the applicant will be the caretaker relative.
- Staff must determine which person(s) has responsibility for the care and control of the child for whom aid is being requested based on information supplied by the customer.
- If the birth or adoptive parent is not the caretaker relative, but lives in the same home as the caretaker relative and the eligible child, the parent must be included in the AU.
- The mandatory inclusion rules do not supersede the caretaker relative relationship requirement - the caretaker relative must have the acceptable degree of relatedness.

Care and Control

The responsibilities for care and control of the child may include but are not limited to responsibility for the following:

- The well-being of the child (personal hygiene, clothing, medical and dental care, nutrition, etc.).
- The child's education or childcare (enrolls child in school, takes child to school, assists with child's homework, attends parent-teacher meetings, etc.).
- The discipline of the child (sets rules, curfew, monitors child's behavior, etc.).
- The religious, cultural and social well-being of the child (church attendance, involvement with community groups and organizations, such as, scouting, little league, school dances, movies, etc.).
- Claiming the child as a tax dependent.

Number of Caretaker Relatives

An AU may have more than one caretaker relative. For example, a married couple each with a child from a prior relationship is each considered the caretaker relative for their respective child. However, an eligible child must have only one caretaker relative at a time.

Minor Parent / Caretaker Relative

A child who is a caretaker relative for their own or another child (such as a sibling) must not be considered as a child in order to establish eligibility for a senior parent in the household.

Changing Caretaker Relatives

Only one needy caretaker relative can be aided within an AU at a time. When an AU relocates from the home of one needy caretaker relative to the home of another needy caretaker relative, the second caretaker relative cannot be aided until the first of the following month.

Caretaker Relationship Verification

- The relationship must be clearly documented in the case record as well as the evidence used to verify the relationship of the caretaker relative has to the applicant or eligible child.

- When the evidence of relationship is incomplete, explorations must be continued to pursue verification to the point that a preponderance of evidence supports an approval or denial of aid.
- The case record must document which kind(s) of evidence does or does not establish relationship - inconsistent or contradictory evidence should be referred to the Bureau of Public Assistance Investigations (BPAI).

When Unable to Verify Relationship Procedures

When evidence is not available to establish relationship, aid may be approved by a supervisor when all the following apply:

- There is a non-parent caretaker relative.
- The claim of relationship is not inconsistent or questionable.
- The supervisor has determined a sworn statement by the caretaker relative affirms their relationship to the child.
- The steps taken to acquire evidence of relationship and their outcome are documented in the case record.

Acceptable Evidence of Relationship

The following are examples of acceptable evidence of the caretaker relative's relationship to a child:

Type of Records	Document
Birth Records	• Adoption papers or records. • Baptismal records of birth and parentage. • Birth certificate.
Court Records	• Court records of parentage. • Court support records. • Divorce papers or termination of California registered domestic partnership. • Juvenile Court records.
Government Records	• Bureau of Vital Statistics or local government records of birth and parentage. • Census records. • Native American Census records. • Child Support Agency paternity records. • Marriage licenses records or declaration of California registered domestic partnership. • Public Health records of birth and parentage.
Miscellaneous	• Church records (including a statement from a priest, minister, rabbi, imam or other holy person) of parentage or relationship. • School or day care center records. • Family Bible. • Insurance Policy. • Hospital or public health records of birth and parentage. • Outpatient care records (maintained by a hospital, clinic or physician). • Voluntary social service agency records.

Alternating Caretaker Relative Living Arrangements for a Child

- If a child stays alternately for periods of **less than one month** with each parent, the caretaker relative will be, in most situations the parent with whom the child stays for the majority of the time. The temporary absence of the caretaker relative or child does not affect this determination.
- When a child alternates between parents for periods of **more than one full calendar month**, there is no temporary absence. The child is considered to be permanently absent from one parent when they are with the other parent.
- The parent with whom the child stays for the minority of the time may be the caretaker relative **if** that parent can establish that they have majority of responsibility for care and control of the child.
- The parent who has been determined to be the caretaker relative of a child, who stays with the other parent for an alternating period of one month or less, will remain the caretaker relative while the child is with the other parent.

Equal Time Caretaker Relative Living Arrangements for a Child

When the child spends an equal amount of time with each parent, and each parent exercises an equal share of care and control, the parent who applied for aid is considered the caretaker relative, provided the other parent is not currently applying for or receiving aid for the child.

When Both Parents Apply for Aid as the Caretaker Relative

When each parent has applied for aid, the caretaker relative is determined by the following order:

- The parent designated in a current court order as the primary caretaker for purposes of public assistance under Civil Code Section 4600.5(h).
- When a court order does not exist and only one parent would be eligible for aid, the parent who would be eligible is the caretaker relative.
- When both parents would be eligible, the parents will designate one parent as the caretaker relative, the agreement will be documented by completing form CW 13 Caretaker Relative Agreement.
- If the parents cannot reach agreement, the parent who first applied for aid for the child will be the caretaker relative.

Death of a Parent Caretaker or Other Caretaker Relative

When it is learned of the death of a parent caretaker or other caretaker relative of a child receiving CalWORKs benefits, and if the child is still eligible for CalWORKs, the staff will assist the new caretaker relative with the process needed to ensure that CalWORKs benefits continue for the child. If the child is no longer eligible for CalWORKs because they are living with a non-relative caretaker rather than a relative caretaker, the staff will inform the non-relative caretaker that Aid to Family with Dependent Children-Foster Care (AFDC-FC) benefits may be available for the child. If they wish to apply for Foster Care benefits at that time, the staff will refer them to the county's Foster Care office.

Procedure:

Chart for Determining Relatedness of Caretaker Relatives

The chart, located in Eligibility Essentials/CalWORKs/Desk Aid site, is available to help staff establish the correct caretaker relationship.

Program Impacts:

None.

References:
- EAS 82-808.
- ACL No. 18-82.

Sunset Date:
This policy will be reviewed for continuance by December 31, 2027.

Approval for Release:

12-12-24

Rick Wanne, Director
Self-Sufficiency Services